# ARIZONA DEPARTMENT OF HEALTH SERVICES

LICENSING

March 19, 2024

Broken Arrow Herbal Center Inc
ATTN: Delano Phillips
410 S. Madison Dr, Ste. 4
Tempe, AZ 85281

RE: INSP-0036435

Dear Mr. Phillips:

The purpose of this letter is to inform you that during a recent compliance inspection (INSP-0036435), conducted on January 11, 2024, by the Arizona Department of Health Services, the Department cited violations in one or more areas that are repeat violations of the same statutes or rules cited previously during routine compliance inspections.

The Statement of Deficiencies ("SOD"), sent on January 29, 2024, describes the violations cited. Because the case has been referred to the Enforcement Team, and the Informal Dispute Resolution ("IDR") period has passed or the IDR has been reviewed and the citations were upheld, the Department is requesting $1,000.00 in Civil Money Penalties ("CMP"), along with a written plan of correction for the violations.

Please review, sign and return the enclosed Civil Money Penalty ("CMP") agreement forms and return to the Department by March 22, 2024.

Once the forms are completed, returned, and signed by the Department, the Department will open an Enforcement and an Invoice in the Facility Licensing Portal. Both the CMP and Plan of Corrections must be submitted through the portal within thirty (30) calendar days of the Effective Date. To submit a Plan of Correction, please see pages 103-105 of the PO/BM Handbook.

If you have any questions, please call our office at (602) 364-0857.

Sincerely,

Darryl McCray
Marijuana Program Compliance Manager
Bureau of Marijuana Licensing

Enclosure

# ARIZONA DEPARTMENT OF HEALTH SERVICES
## PUBLIC HEALTH LICENSING SERVICES
## BUREAU OF MARIJUANA LICENSING

## ENFORCEMENT MEETING NOTIFICATION OF RIGHTS

| Facility Name: | License# | PO/BM: |
|---|---|---|
| Broken Arrow Herbal Center Inc | 000000096DCWXQ00231932 | Delano Phillips |

Please initial after each section.

1. I understand that I have the right to reject the proposed resolution and may refuse to sign this Agreement. DP (initials)
2. This Agreement has been reviewed and approved by the Assistant Director. If this Agreement is changed, it will be returned to the Assistant Director for approval. DP (initials)
3. I understand that if I do not enter into an agreement at this time, the Program will refer this matter to Public Health Licensing Services ("Licensing") Enforcement Team and a legal order may be prepared and sent to me. DP (initials)
4. I understand that I have due process rights and can request a hearing before the Office of Administrative Hearings regarding any legal order issued by the Department's Director. DP (initials)

I hereby acknowledge that I have discussed the above statements with the Department and understand my rights with regard thereto.

Licensee: Delano Phillips Date: 03/21/2024
(Licensee's signature)

# ENFORCEMENT MEETING AGREEMENT FORM

| Facility Name: | License# | PO/BM: |
|---|---|---|
| Broken Arrow Herbal Center Inc | 000000096DCWXQ00231932 | Delano Phillips |

Department concern noted: The department is requesting $1,000.00 in Civil Money Penalties (CMP). Along with a written plan of correction for the violations.

Agreement:

(initials) DP Licensee agrees to pay civil money penalties in the amount of. $1,000.00

(initials) DP Licensee understands to not be in substantial compliance could result in further enforcement action up to and including denial of the renewal application.

| | PLEASE PRINT NAME | SIGNATURE | DATE |
|---|---|---|---|
| Licensee: | Delano Phillips | Delano Phillips | 03/21/2024 |
| Licensee: | | | |
| Licensee: | | | |
| Bureau Chief: ~~Deputy Assistant Director:~~ | Kim Crawford ~~Megan Whitby~~ | Kim Crawford | 03/21/2024 |
| Assistant Director: | Tom Salow | Thomas Salow | 3/21/24 |
| Compliance Manager: | Darryl McCray | | 3/21/24 |

# ARIZONA DEPARTMENT OF HEALTH SERVICES
## PUBLIC HEALTH LICENSING SERVICES
## BUREAU OF MARIJUANA LICENSING

Delano Phillips
410 S. Madison Dr, Ste. 4
Tempe, AZ 85281
License # 000000096DCWXQ00231932

## CIVIL PENALTIES

| Statute/Rule | Violations | Penalty Assessment | Penalty Amount |
|---|---|---|---|
| A.A.C. R9-17-318(G)(1)(c) | 01/11/2024<br><br>02/17/2022 | Insp: 0036435 Security/ 2nd Violation<br>Insp: 0001287 Security/ 1st Violation | $1000.00 |
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|---|---|---|---|
| Total | | | $1,000.00 |

Payments are to be made in the Facility Licensing Portal and shall be made within thirty (30) days from the execution date of the attached Enforcement Agreement unless an alternate payment schedule is arranged. Please review pages 115-117 of the PO/BM Handbook for instructions on how to make payment.